

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL REVISIONAL JURISDICTION)

Present:

Mr. Justice Mamnoon Rahman

Criminal Revision No. 3271 of 2018

Md. Yasin Sheikh

.....Convict-Appellant-Petitioner.

-VERSUS-

The State

..... Opposite Party.

Mr. Md. Zulfiquar Bulbul, Adv. with

Mr. K.M. Reyad Salimullah, Adv.

..... For the Petitioner

Mr. Mohammad Taifoor Kabir, DAG with

Mr. Md. Lokman Hossain, AAG

Mr. Md. Hatem Ali, AAG

..... For the Opposite Party.

Heard & Judgment on: 30th November, 2023

Rule was issued calling upon the respondent-opposite party to show cause as to why the judgment and order of conviction and sentence dated 07.11.2018 passed by the learned Additional Sessions Judge, Khulna in Criminal Appeal No.21 of 2017 dismissing the appeal and affirming the judgment and order dated 19.12.2016 passed by the learned Senior Judicial Magistrate, Court No.3, Khulna (In-Charge) arising out of C.R Case No.23 of 2012 (Rupsa) convicting the petitioner under Section 4 of the Dowry Prohibition Act, 1980 and sentencing him to suffer rigorous imprisonment for a period of 2(two)

years and also to pay a fine of Tk. 5,000/- (five thousand) in default to suffer simple imprisonment for a period of 3(three) months more, should not be set aside and/or pass such other or further order or orders as to this Court may seem fit and proper.

The prosecution case in short, is that, one Most. Monira Shabnam, being complainant filed a C.R Case No. 23 of 2012 (Rupsa) against the present convict-petitioner alleging *inter-alia* that the marriage was solemnized on 01.09.2004 as per Islami Sharia fixing the dower money at Taka 1,00,001/-. That after marriage the complainant saw that the convict-petitioner is a characterless and addicted with another women. That the complainant was trying to return the said bad way and she took many steps but the complainant did return the convict-petitioner in good way. That the convict-petitioner in various time created pressure upon the complainant to bring money and various goods as per dowry. That the complainant's father compel to pay the said demand but the convict- petitioner was satisfied. That the convict-petitioner day by day increased the torture upon the complainant. That when the complainant did not pay the said dowry the convict-petitioner being agitating made conspiracy they wasted the male. That the complainant for happy conjugal life she was trying to maintain their family life. That on 21.05.2011 at 11.00 the accused-petitioner came to the father house of the complainant. That another accused demanded at Taka 1,00,000/- if the complainant did

not pay the said money the convict-petitioner will not maintain the family with the complainant. That the complainant denied to pay the said demand at taka 1,00,000/-. That on the other hand the convict-petitioner return back after lapse the complainant. The complainant did not find any remedy and hence the case.

The trial court proceeded with the case and examined as many as four witnesses. The trial court after hearing the parties and considering the facts and circumstances, convicted and sentenced the petitioner under section 4 of the Dowry Prohibition Act, 2018 to suffer rigorous imprisonment for two years and to pay fine of Tk. 5000/- in default to suffer simple imprisonment for three months. Being aggrieved by and dissatisfied with the aforesaid judgment and order passed by the trial court preferred appeal before the learned Sessions Judge, Khulna being Criminal Appeal No. 21 of 2017 and the lower appellate court vide impugned judgment and order dated 31.10.2018 dismissed the appeal and thereby affirmed the judgment and order passed by the trial court. Being aggrieved, the petitioner moved before this court and obtained the present rule.

Mr. Md. Zulfiquar Bulbul, the learned Advocate appearing on behalf of the petitioner submits that both the courts below without applying their judicial mind and without considering the facts and circumstances most illegally and arbitrary manner passed the impugned judgments and order of conviction and sentence which

requires interference by this court. He further submits that there are serious contradictions in between the testimony of P.Ws. regarding the place, time and manner of occurrence as much as all the prosecution witnesses who are highly interested witnesses and the court below erred in law in relying upon such biased evidence in convicting the petitioner which is liable to be set aside for ends of justice. He further submits that the version of the P.W. 1 in the complaint petition as well as in her deposition are totally different and there are contradictions regarding the demand of dowry, payment, time and place etc. and as such the petitioner is liable to be acquitted for ends of justice.

Mr. Mohammad Taifoor Kabir, the learned Deputy Attorney General appearing on behalf of the opposite party-state vehemently opposes the rule. He submits that the court below on proper appreciation of the facts and circumstances and material on record has rightly passed the impugned judgment and order of conviction and sentence which requires no interference by this court.

I have perused the impugned judgment and order passed by the lower appellate court as well as trial court. I have also perused the revisional application, grounds taken thereon, necessary papers and documents as well as the LC records and I have heard the learned Advocate for the petitioner as well as the learned Deputy Attorney General for the State.

On perusal of the same, it transpires that the present petitioner stood charge for an offence under section 4 of the Dowry Prohibition Act, 2018 wherein the trial court after examined four witnesses handed down the conviction and sentence under section 4 of the Dowry Prohibition Act, 2018. P.W. 1 who lodged the complaint petition and in her deposition stated that after marriage, the petitioner used to torture her then she left the petitioner's house and went to her parent's house. On 21.05.2011 they came to her father's house and demanded dowry of Tk. 1,00,000/- as the complainant failed to do so the petitioner left the complainant father's house and thereafter the complainant filed the case. In her deposition she further stated that on 21.05.2011 she paid Tk. 1,00,000/- to the petitioner. However, In her cross examination she stated that she paid Tk. 1,00,000/- to the petitioner on the date of occurrence. P.W. 2 is the uncle of the plaintiff who stated in her deposition that the petitioner demanded dowry. In cross-examination he stated that he went to the place of occurrence as the mother of the complainant called her over phone. P.W. 3 is the cousin of the P.W. 1 who stated that on hearing hue and cry he went to the place of occurrence. P.W. 4 is the father of the complainant and in his deposition he stated that on the date of occurrence the petitioner went to his house along with the complainant wherein the petitioner demanded dowry.

So, on meticulous perusal of the evidence, it transpires that as per P.W. 1 she left the husband's house long before and on the date of occurrence the petitioner came to the place of occurrence, namely her father's house and demanded dowry but P.W. 4 in his deposition stated that on the date of occurrence her daughter came to his house along with her husband and demanded dowry. So, it clearly transpires that there are material contradictions in between the evidence regarding the implication of the petitioner in the offence as alleged. Apart from that it transpires that all the witnesses are highly interested witnesses as much as though in the complaint petition it has been stated that the occurrence took place on 21.05.2011 but the case was lodged on 23.01.2012 that about eight months after and in the complaint petition there is no single explanation for such delay which also creates serious doubt in the prosecution case. Hence, I find substance in the instant rule.

Accordingly, the rule is made absolute. The impugned judgment and order passed by the courts below is hereby set aside and the petitioner be discharged from the bail bond.

Send down the L.C. records to the concerned court below with a copy of the judgment at once.

(Mamnoon Rahman,J:)

Emdad. B.O.